United States District Court
Northern District of California

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

G. SERRATO,

Defendant.

Case No. 26-cv-05953-ASK

ORDER RE MOTION TO PROCEED IN FORMA PAUPERIS

Re: Dkt. No. 2

On June 17, 2026, Plaintiff Brendan Ngehsi Newanforbi filed this civil action and an application to proceed *in forma pauperis*. The Court **GRANTS** Mr. Newanforbi's application to proceed *in forma pauperis*. The Court now screens his complaint pursuant to 28 U.S.C. § 1915, and, for the reasons set forth below, concludes that the operative complaint is sufficient.

I. BACKGROUND

Mr. Newanforbi alleges that, in November 2024, two California Highway Patrol officers "subjected [him] to a false arrest, fabricated material statements in a sworn report, and forced an involuntary blood draw through a warrant procured by those fabrications" in relation to a traffic stop on Interstate 580 East in Livermore, Alameda County. Dkt. 1 at 1 ¶ 2. Based on this November 2024 incident, Mr. Newanforbi submitted a request to Defendant Serrato, the Captain and Commander of the California Highway Patrol ("CHP"), to certify his "Form I-918 Supplement B, U Nonimmigrant Status Certification[.]" *Id.* at 7-8 ¶ 25. Defendant Serrato denied Mr. Newanforbi's certification request on the grounds that the November 2024

> incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code (PC), nor does it meet the standards of the Immigration and Nationality Act Section 101(a)(15)(U)(iii). Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC.

Id. at 8-9 ¶ 29. Mr. Newanforbi brings this civil rights action against Defendant Serrato for denial of his certification request, accusing Defendant Serrato of violating his substantive and procedural due process rights under the Fourteenth Amendment and retaliating against him in violation of the First Amendment.

II. LEGAL STANDARD

The *in forma pauperis* statute provides that the Court shall dismiss the case if at any time the Court determines that the allegation of poverty is untrue, or that the action (1) is frivolous or malicious, (2) fails to state a claim on which relief may be granted, or (3) seeks monetary relief against a defendant who is immune from such relief. 28 U.S.C. § 1915(e)(2).

A complaint is frivolous under § 1915 where the Court lacks subject matter jurisdiction. *See Castillo v. Marshall*, 207 F.3d 15, 15 (9th Cir. 1997) (citation omitted); *see also Pratt v. Sumner*, 807 F.2d 817, 819 (9th Cir. 19987) (recognizing the general proposition that a complaint should be dismissed as frivolous on § 1915 review where subject matter jurisdiction is lacking).

A complaint may also be dismissed for failure to state a claim, because § 1915(e)(2) parallels the language of Federal Rule of Civil Procedure 12(b)(6). *Lopez v. Smith*, 203 F.3d 1122, 1126-27 (9th Cir. 2000). The complaint, therefore, must allege facts that plausibly establish the defendant's liability. *See Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555-57 (2007). When the complaint has been filed by an unrepresented plaintiff, courts must "construe the pleadings liberally . . . to afford the petitioner the benefit of any doubt." *Hebbe v. Pliler*, 627 F.3d 338, 342 (9th Cir. 2010) (cleaned up). Upon dismissal, unrepresented plaintiffs proceeding *in forma pauperis* must be given leave to "amend their complaint unless it is absolutely clear that the deficiencies of the complaint could not be cured by amendment." *Franklin v. Murphy*, 745 F.2d 1221, 1235 n.9 (9th Cir. 1984) (cleaned up); *Lopez v. Smith*, 203 F.3d 1122, 1130-31 (9th Cir. 2000).

III. DISCUSSION

As courts of limited jurisdiction, "federal courts have an independent obligation to ensure that they do not exceed the scope of their jurisdiction." *Henderson ex rel. Henderson v. Shinseki*,

562 U.S. 428, 434 (2011); *Valdez v. Allstate Ins. Co.*, 372 F.3d 1115, 1116 (9th Cir. 2004) (noting that district courts are "obligated to consider sua sponte whether [they] have subject matter jurisdiction"). There are two bases for federal subject matter jurisdiction: (1) federal question jurisdiction under 28 U.S.C. § 1331 and (2) diversity jurisdiction under 28 U.S.C. § 1332. A district court has federal question jurisdiction in "all civil actions arising under the Constitution, laws, or treaties of the United States." *Id.* at § 1331. A cause of action "arises under federal law only when the plaintiff's well-pleaded complaint raises issues of federal law." *Hansen v. Blue Cross of Cal.*, 891 F.2d 1384, 1386 (9th Cir. 1989). A district court has diversity jurisdiction "where the matter in controversy exceeds the sum or value of $75,000 . . . and is between citizens of different states, or citizens of a State and citizens or subjects of a foreign state." *Id.*

Because Mr. Newanforbi's claims arise under federal law, the Court has federal subject matter jurisdiction over his complaint. So, the Court proceeds to determine whether Mr. Newanforbi's complaint states a claim.

"Congress created U nonimmigrant status as part of the Victims of Trafficking and Violence Protection Act of 2000 ('VTVPA')." *Perez Perez v. Wolf*, 943 F.3d 853, 856 (9th Cir. 2019).

> To be eligible for a U visa, a petitioner must establish that he or she: (1) "has suffered substantial physical or mental abuse as a result of having been a victim of qualifying criminal activity"; (2) "possesses information" about qualifying criminal activity; and (3) "has been helpful, is being helpful, or is likely to be helpful" to an authority "investigating or prosecuting" qualifying criminal activity.

Id. at 857. "To apply for a U visa, a petitioner must file with USCIS a Form I-918, Petition for U Nonimmigrant Status." *Id.* That form requires U visa petitioners to "obtain a certification from a Federal, State, or local law enforcement official, prosecutor, judge, or other Federal, State, or local authority investigating criminal activity." *Id.* at 863 (cleaned up). Law enforcement's "decision of whether or not to issue certification to qualify for U Nonimmigrant status is discretionary." *United States v. Biao*, No. 98CR2812-BTM, 2011 WL 607087, at *1 (S.D. Cal. Feb. 11, 2011) (citing *Orosco v. Napolitano,* 598 F.3d 222, 226 (5th Cir.2010)).

Qualifying criminal activity

> involve[es] one or more of the following or any similar activity in violation of Federal, State, or local criminal law: rape; torture; trafficking; incest; domestic violence; sexual assault; abusive sexual contact; prostitution; sexual exploitation; stalking; female genital mutilation; being held hostage; peonage; involuntary servitude; slave trade; kidnapping; abduction; unlawful criminal restraint; false imprisonment; blackmail; extortion; manslaughter; murder; felonious assault; witness tampering; obstruction of justice; perjury; fraud in foreign labor contracting (as defined in section 1351 of Title 18); or attempt, conspiracy, or solicitation to commit any of the above mentioned crimes[.]

8 U.S.C. § 1101(a)(15)(U)(iii). Here, Mr. Newanforbi alleges that he was the victim of the qualifying crimes of false imprisonment, unlawful criminal restraint, felonious assault, and obstruction of justice. Dkt. 1 at 6 ¶ 21. More specifically, Mr. Newanforbi alleges that he was wrongfully arrested, detained, and subjected to a blood test for driving under the influence based on a CHP report "containing four material fabrications[.]" *Id.* at 5 ¶ 17. Because of the fabricated report, Mr. Newanforbi "suffered incarceration at Santa Rita Jail for approximately five days[,]" among other things. *Id.* at 6-7 ¶ 22. Mr. Newanforbi "filed a formal complaint with CHP regarding the officers' conduct" and "a complaint with the Commission on Peace Officer Standards and Training[.]" *Id.* at 7 ¶ 23.

Accepting Mr. Newanforbi's alleged facts as true, his complaint supports the plausible inferences that CHP officers falsely imprisoned him in November 2024 based on fabricated evidence. It also supports the plausible inference that, despite his status as a victim of the qualifying crime of false imprisonment, Defendant Serrato retaliated against him by wrongfully denying his certification request. While Defendant Serrato had discretion to certify the request, he did not have discretion to retaliate against Mr. Newanforbi. Mr. Newanforbi has thus set forth "a short and plain statement of the claim showing that the pleader is entitled to relief" as required by Rule 8 of the Federal Rules of Civil Procedure. Accordingly, the Court concludes that the complaint is sufficient to satisfy § 1915 review.

IV. CONCLUSION

For the reasons set forth above, the allegations in Mr. Newanforbi's complaint are sufficient under 28 U.S.C. § 1915(e)(2). The Clerk of Court shall issue the summons. Furthermore, the U.S. Marshal for the Northern District of California shall serve, without prepayment of fees, a copy of the complaint, any amendments or attachments, and this Order upon Defendant Serrato.

While this case is pending, Mr. Newanforbi must promptly inform the Court of any change of address. Failure to do so may result in dismissal of this action.

In amending the complaint, Mr. Newanforbi may wish to contact the Federal Pro Bono Project's Help Desk for assistance—a free service for unrepresented litigants—by calling (415) 782-8982 to make an appointment. While the Help Desk does not provide legal representation, a licensed attorney may assist Mr. Newanforbi in determining whether there are viable claims, and how to properly plead them.

Mr. Newanforbi may also wish to consult a manual the court has adopted to assist unrepresented litigants in presenting their case. This manual, and other free information for unrepresented litigants, is available online at: https://cand.uscourts.gov/pro-se-litigants/.

IT IS SO ORDERED.

Dated: June 29, 2026

AJAY S. KRISHNAN
United States Magistrate Judge

United States District Court
Northern District of California